

Enquiries:
 Morongwa Mokoena
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 Red Brick Building
 2nd Floor, Room 205
 Eskia Mphahlele Drive



GROUP FINANCIAL SERVICES INSURANCE MANAGEMENT

Attention:

INSURANCE REQUIREMENTS

The City of Tshwane has accepted the under-mentioned tender. Please complete the form for all contracts within the policy limit of R50-million each (VAT exclusive). The completed document with a copy of the Letter of Appointment must be submitted to the Section: Insurance Management 30 (thirty) days before the inception of the contract.

Certificate No:	
Tender Number:	ROC 08 2022 23
Contract No:	
Awarded to:	SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
Postal address:	12 BAUHINIA STREET
	NO. 7 STANFORD OFFICE
	CENTURION
	0157

1. Please complete the following in detail:

Contract Description:	TENDER FOR THE CONSTRUCTION OF CONCRETE BERM STRIPS AT VARIOUS CEMETERIES IN THE SEVEN REGIONS FOR THE CITY OF TSHWANE: REGIONAL OPERATIONS AND COORDINATION: AS AND WHEN REQUIRED: THREE (3) YEAR PERIOD				
Accepted Tender Price for the full contract period (VAT exclusive): R2 million (As and When Tender)					
Value of Free Issue Material or Equipment supplied for the full contract period (VAT exclusive): N.A.					
Estimated Final Value of Contract for the full contract period (VAT exclusive): R2 million (As and When Tender)					
Award Date of Contract (BAC): 28 July 2023					
Inception Date of Contract: T.B.C. (14 August 2023) (No claim incurred from the date of appointment)					
Expected Date of Completion of Contract: 27 July 2026					
Maintenance Period (Months): N.A.					
Name and Telephone Number of COT Project Coordinator: Wouter Koekemoer - Tel: 012 358 1496					
Construction Contract:	Yes X	No	Maintenance Contract:	Yes	No X
Fire arms:	Yes	No X	Testing Period	N.A.	Days

2. Supplementary insurance information required. Please provide full detail on the questions answered "YES".

i)	Is there an indication of a risk of removal or weakening of/interference with support to adjacent property?	NO
ii)	Should SASRIA "riot" insurance be arranged?	YES
iii)	Does an exposure exist which can be covered by project delay insurance?	NO
iv)	Will there be any direct import of equipment requiring marine insurance?	NO
v)	Does the contract involve work on any existing property e.g. maintenance/refurbishment/alternations etc – if so does the risk of damage to such property exceed R1 000 000.00?	YES
vi)	Does the contract evidence an exposure to Professional Indemnity risks not adequately covered by any professionals or consultants involved?	NO
vii)	Will blasting be done during the contract works period	NO
viii)	Does the contract work specifications include any undertaking where the work entails working on the following:	NO
	a) An Airport Runway or Airstrip or any aircraft	NO
	b) Waterborne vessels	NO
	c) Dams, canals, water channels, tunnelling, underground work and bridges over water courses	NO
	d) Plant intended for the processing of hydrocarbons, petrochemicals ammonia fertilisers, and the like including plant which requires exothermic reaction by catalysts	NO

3. Please choose between the following options and submit proof of the documentation requested:

OPTION A	X	OPTION B
<u>The Contractor's own Public Liability Insurance Policy only applicable for Service Contracts</u>		<u>The City of Tshwane's Public Liability for Contractors Policy or Principal Controlled Contractors All Risk Policy for all contracts including Service Contracts</u>
<u>Contractor to Insurer</u>		<u>We only insure the works Contractor to Insure</u>
a) All Risk Insurance cover with regard to all Plant and Materials and Equipment, owned, leased or hired by the Contractor that are used in the execution of the contract for the full replacement value thereof. b) Motor Vehicle and Liability Insurance cover indicating the registration numbers of the vehicles owned, leased or hired by the Contractor that are used in the execution of the contract to the amount of at least R5-million per claim with the number of claims unlimited. c) SASRIA cover for motor vehicles and Plant and Materials and Equipment owned, leased or hired by the Contractor that are used in the execution of the contract for the full replacement value thereof. d) In respect of Plant and Materials and Equipment and Motor Vehicles brought onto the Site by or on behalf of Sub-contractors, the Contractor shall be deemed to have complied with the provisions of this Sub-Clause by ensuring that such Sub-contractors have similarly insured such Plant and Materials and Equipment and Motor Vehicles. e) Proof must also be submitted that the Contractor complies with the conditions of the following		The Contractor/Sub-contractor must obtain for the duration of the contract until the issuing of the Defects Certificate or the end of the Maintenance Period, the following insurance policies in the name of the Contractor (including all Subcontractors whether nominated or otherwise) at an insurance company within 14 (fourteen) days of the notification of acceptance of the tender and must pay all premiums and supply proof thereof to the relevant Project Manager 30 (thirty) days before the inception of the contract, that the policies have been taken out and that all premiums have been paid: a) All Risk Insurance cover with regard to all Plant and Materials and Equipment owned, leased or hired by the Contractor that are used in the execution of the contract for the full replacement value thereof. b) Motor Vehicle and Passenger Liability Insurance cover indicating the registration numbers of the vehicles owned, leased or hired by the Contractor that are used in the execution of the contract to the amount of at least R10-million per claim with the

legislation: 1. Compensation for Occupational Injuries and diseases, 1993. 2. Unemployment Insurance Act, 1996. 3. The Contractor shall in respect of the Site of the contract works appoint in writing a competent person to meet the requirements of the Health and Safety Act, No 85 of 1993 as amended. f) Public Liability insurance cover in the name of the contractor. The minimum limit of indemnity for any one event is R5- million and the number of claims will be unlimited. g) The insurance period must be specified in the Insurance Policy. h) The rights and interests of the City of Tshwane must be noted in the Insurance Policy in the form of an endorsement.	number of claims unlimited. c) SASRIA cover for motor vehicles and Plant and Materials and Equipment owned, leased or hired by the Contractor that are used in the execution of the contract for the full replacement value thereof. d) In respect of Plant and Materials and Equipment and Motor Vehicles brought onto the Site by or on behalf of Subcontractors, the Contractor shall be deemed to have complied with the provisions of this Sub-Clause by ensuring that such Subcontractors have similarly insured such Plant and Materials and Equipment and Motor Vehicles. e) Without limiting the Contractor's obligation in terms of the Contract, the Contractor will effect and maintain for the duration of the contract period until the issuing of the Defects Certificate or the end of the Maintenance Period insurance against all accidents or misfortunes including accidental loss of or damage to tangible property (except the Works, Plant and Materials and Equipment) and liability for accidental death of or bodily injury to or illness or disease contracted by any person (not an employee of the Contractor) occurring during the Period of Insurance and arising out of or in connection with the performance of the Insured Contract at the Contract Site as defined in the Schedule at any insurance company or under the policy effected by the Employer within 30 (thirty) days before the inception of the contract. The minimum limit of indemnity for any one event is R5-million and the number of claims will be unlimited. f) Proof must also be submitted that the Contractor complies with the conditions of the following legislation: 1. Compensation for Occupational Injuries and diseases, 1993. 2. Unemployment Insurance Act, 1996. 3. The Contractor shall in respect of the Site of the contract works appoint in writing a competent person to meet the requirements of the Health and Safety Act, No 85 of 1993 as amended.
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4. Please tick the applicable option: We declare that the premiums for insurance will be paid by:

❖ **Contractor:**

OR

❖ **Proof of own insurance of Contractor attached; therefore no premiums will be paid.**

5. CONTRACT WORKS CLAIMS REPORTING PROCEDURES

5.1 REPORTING OF INCIDENTS

In the event of an occurrence, which is likely to give rise to a claim under the insurance policy affected by the Employer, the Contractor/Sub-contractors and Project Manager will adhere to the following procedures:

- a) In addition to any statutory obligations and/or requirements contained in the General Conditions of Contract, the Contractor shall notify the Employer and the Project Manager of every occurrence within 48 (forty-eight) hours giving the circumstances, nature and an estimate of the loss or damage.
- b) The Project Manager will be responsible to register a claim online (BCM) and upload the relevant claim documentation to the claim and manually complete a general claim form for each incident within 30 (thirty) days after the incident occurred to the Section: Insurance Management. Should the incident be reported by the Project Manager more than 30 (thirty) days after the incident occurred to the Section: Insurance Management, the claim will only be considered if the claim documentation is accompanied by a letter from the relevant Group Head/Divisional Head motivating the reason(s) for the late reporting of the incident, but the Project Manager must take note the Insurer might repudiate the loss if it is found that the insurers rights have been compromised as a result of the late reporting.
- c) The following documentation must be included with the claim documentation:
 - General Claim Form
 - Any other documentation related to the claim
 - Photos of damages caused or suffered as proof or substantiation of the claims
- d) In the event of Insured Property being damaged during the Contract Works beyond economical repair, the property must be safeguarded and be handed over to the Employer's insurer for salvage.
- e) The Section: Insurance Management will inform the Employer's insurer of the incident. The Contractor/Subcontractor shall afford all reasonable access to the Site to the Employer, the Project Manager, the Employer's insurers and/or representatives for the purpose of assessment of any loss or damage.

5.2 REPORTING OF CATASTROPHIC INCIDENTS

In the event of an occurrence, which is likely to give rise to a claim, under the insurance policy effected by the Employer, **with an estimated loss or damage of more than R250 000,00**, the Contractor and the Project Manager will adhere to the following procedures:

- a) In addition to any statutory obligations and/or requirements contained in the General Conditions of Contract, the Contractor shall notify the Employer and the Project Manager of every occurrence within 24 (twenty-four) hours giving the circumstances, nature and an estimate of the loss or damage.
- b) The Project Manager must notify the Section: Insurance Management on the same day that the Contractor/Sub-contractor has notified the Project Manager of the incident.
- c) The Section: Insurance Management will notify the Employer's insurer of the incident. The Contractor/Sub-contractor shall afford all reasonable access to the Site to the Employer, the Project Manager, the Employer's insurers and/or representatives for the purpose of assessment of any loss or damage.
- d) The Project Manager will be responsible to register a claim online (BCM) and upload the relevant claim documentation to the claim and manually complete a general claim form for each incident within 30 (thirty) days after the incident occurred to the Section: Insurance Management. Should the incident be reported by the Project Manager more than 30 (thirty) days after the incident occurred to the Section: Insurance Management, the claim will only be considered if the claim documentation is accompanied by a letter from the relevant Group Head/ Divisional Head motivating the reason(s) for the late reporting of the incident. Should the relevant claim documentation not be submitted within 30 (thirty) days, the Project Manager must take note the Insurer might repudiate the loss if it is found that the insurers rights have been compromised as a result of the late reporting.

5.3 REPORTING OF CRIME RELATED INCIDENTS

All crime related incidents, losses or shortages irrespective of the value, must be reported within 24 (twenty-four) hours by the person who was involved or who has discovered the incident to the nearest South African Police Services (SAPS) station. The name of the Police Station, Investigation Officer and the Case number must be obtained and stated on the Contractor Claim Form. Should the incident not be reported to the SAPS, the Project Manager must take note the Insurer might repudiate the claim.

6. CONTRACTOR TO PAY DEDUCTIBLES

Any claim in terms of the insurance affected by the Employer shall be subject to the Contractor being responsible for the payment of the amount stated in the Annexure to the Policies as being the deductible (first amount payable or Excess) as defined in the Certificate of Insurance issued by the Employer's insurer in terms of the Policy.

J.W. Koekemoer

Name: City of Tshwane Project Manager

Signature

SITHEMBE TRANSPORTATION & PROJECTS

Signature

Name: Contractor

04 OCTOBER 2023

Date

012 358 1496

Telephone No.

012 880 3155

Telephone No.

The document must be signed by the Project Manager and Contractor and be submitted with the Letter of Appointment 30 days before the inception of the contract to the Section: Insurance Management for attention: Morongwa Mokoena and/or Lawrence Matjila, Red Brick Building, 2nd Floor, 175 Eskia Mphahlele Drive.

Yours faithfully

ACCOUNTANT: CONTRACTORS ALL RISK